

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
MELVIN VELEZ

Plaintiff,

09 Civ. 6388

-against-

“ECF CASE”

**COMPLAINT AND
DEMAND FOR
JURY TRIAL**

THE CITY OF NEW YORK, a municipal entity,
POLICE OFFICER STEVEN TROISE (Shield No: 09309),
POLICE OFFICER DAVID STAGLIANO (Shield No: Unknown),
individually and in their official capacity as New York City Police
Officers, and “JOHN DOES,” unidentified
police officers employed by the New York City Police
Department, in their official and individual capacities,
Defendants.

-----X

Plaintiff, **MELVIN VELEZ**, by his attorney, DANIELLE V. EADDY, complaining of
the Defendants, respectfully shows and alleges as follows:

PRELIMINARY STATEMENT

ONE: This is a civil rights action seeking damages for the false arrest, false imprisonment, and assault and battery of the Plaintiff, **MELVIN VELEZ**, in violation of the United States Constitution, the Civil Rights Act of 1871, and 42 U.S.C. §§ 1981 and 1983, as well as damages for the negligence, emotional distress, and negligent hiring of the Defendants herein in violation of the United States Constitution and said statutes.

TWO: On or about December 1, 2007 between approximately 2:00 A.M. and 3:20 A.M.

the Plaintiff was seized by defendants New York City police officers in front of Duvet Restaurant and Lounge located at 45 West 21st Street, New York, NY. The Plaintiff was subsequently wrongfully stopped, seized, assaulted, and placed under arrest by members of the New York City Police Department acting under color of state law, unjustifiably and without probable cause. Said New York City Police Officers are agents and employees of the City of New York.

THREE: The Plaintiff was subsequently charged and prosecuted for crimes which he did not commit and which the Defendants had reason to know were false.

FOUR: As a result of said unlawful arrest, unlawful search and seizure, unlawful imprisonment, and assault and battery, the Plaintiff was seriously and permanently damaged.

FIVE: Plaintiff seeks monetary damages, both compensatory and punitive, as well as injunctive and declaratory relief in order to assure that the Plaintiff secures full and complete relief and justice for the violations of his rights under the law, costs, attorney's fees and such other and further relief as this Court deems just and proper.

JURISDICTION AND VENUE

SIX: This action arises under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. §§ 1983, 42 U.S.C. §§ 1985, and 42 U.S.C. §§ 1988.

SEVEN: The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367, and the doctrine of pendent jurisdiction.

EIGHT: The acts complained of occurred in the Southern District of New York and

venue is lodged in this Court pursuant to 28 U.S.C. §1391 (b).

THE PARTIES

NINE: The Plaintiff is a citizen of the United States of America residing in the State, City and County of New York. The Plaintiff is a twenty-five year old Hispanic male.

TEN: Defendant City of New York (hereinafter “the City,”) is a municipal entity which was created under the existing laws and Constitution of the State of New York. The Defendant City of New York is authorized and charged with maintaining a police department for the express purpose of protecting the welfare of those individuals who reside therein. Further, the defendant City was and continues to be responsible for the policy, practice, supervision, implementation and conduct of all matters within the New York City Police Department (hereinafter “NYPD”) including but not limited to the training, supervision, and conduct of all NYPD personnel. The City is charged with ensuring that the NYPD personnel follow and carry out the laws of the United States and the State of New York.

ELEVEN: At all relevant times, the Defendant STEVEN TROISE was a Police Officer assigned to the 13th Precinct in New York, New York, City and State of New York under Shield Number 09309.

TWELVE: At all relevant times, the Defendant DAVID STAGLIANO was a Police Officer assigned to the 13th Precinct in New York, New York, City and State of New York. Said Officer Defendant’s shield number is unknown at this time.

THIRTEEN: Upon information and belief, at all relevant times, Defendant Police Officers “JOHN DOES” were assigned as either police officers or detectives within the

13th precinct in New York, New York City, and the State of New York.

JURY DEMAND

FOURTEEN: Plaintiff demands a trial by jury in this action.

FACTUAL ALLEGATIONS

FIFTEEN: On or about December 1, 2007, between approximately 2:00 a.m. and 3:20 a.m., the Plaintiff, **MELVIN VELEZ**, was standing in front of Duvet Restaurant and Lounge at 45 West 21st Street, New York, NY with his sister Vanessa Velez, his cousin Jennifer Velez, and her friend Jasmine Acosta.

SIXTEEN: While outside this location, a Hispanic male approached Plaintiff with a bottle in hand. Said male then confronted the Plaintiff and swung his fist towards the Plaintiff's face, while at the same time holding the bottle in his other hand. The Plaintiff then attempted to grab the bottle from said male in self-defense.

SEVENTEEN: As the Plaintiff attempted to grab said bottle from the Hispanic male, Defendant Officer TROISE, Defendant Officer STAGLIANO, and Defendant Officer JOHN DOE No.1, approached the Plaintiff and slammed him to the ground.

EIGHTEEN: Defendant Officer TROISE then placed his knee in the Plaintiff's back as he was being forced to the ground. The Plaintiff repeatedly tried to explain that he was a victim, yet Defendant Officer TROISE still kept his knee in the Plaintiff's back. Thereafter, Defendant Officer TROISE placed handcuffs on the Plaintiff while Defendant Officer

STAGLIANO and Defendant Officer JOHN DOE repeatedly kicked the Plaintiff in his face and back without justification or provocation.

NINETEEN: Plaintiff was subsequently removed from off of the ground, placed in a police vehicle and taken to the 13th precinct in New York, New York.

TWENTY: At the precinct, Plaintiff was not provided with a reason for his arrest. Indeed, the Plaintiff and Plaintiff's sister repeatedly informed the officers of the Plaintiff's innocence and the events of that evening. However, said police officers did not respond to the Plaintiff or his sister. Said officers also failed to view a videotape of the incident, readily available for review, which proved that the Plaintiff was innocent of the charges lodged against him.

TWENTY-ONE: While the Plaintiff remained in the precinct, he bled from his nose and lip but was not offered an icepack or cold towel to stop the bleeding. Thereafter, the Plaintiff was taken to Bellevue Hospital for medical assistance where he was treated and released to police custody. The Plaintiff subsequently required further medical treatment as a result of these injuries.

TWENTY-TWO: Thereafter, the Plaintiff was brought to Central Booking and arraigned in Manhattan Criminal Court where he was charged with Reckless Endangerment in the Second Degree, Criminal Possession of a Weapon in the Fourth Degree, and Attempted Assault in the Third Degree.

TWENTY-THREE: As a result of this wrongful arrest, the Plaintiff had to retain counsel to defend himself in the resulting criminal court action and was required to take off several days from work and appear in court.

TWENTY-FOUR: This case was eventually resolved on or about July 23, 2008 when

the charges brought against the Plaintiff were reduced to a violation and ten days of community service.

TWENTY-FIVE: As a result of Plaintiff's wrongful arrest, detention, and assault and battery, Plaintiff has suffered serious physical injury. Specifically, Plaintiff sustained bruising and contusions to the face, a black eye, a bloody lip, bruising to the nose and the upper lip, a chipped tooth as well as pain to the Claimant's back and ribs.

TWENTY-SIX: In addition, Plaintiff continues to suffer from severe headaches, back pain, and sinus problems as a result of the assault and battery that took place herein.

TWENTY-SEVEN: As a result of Plaintiff's wrongful arrest, detention, and assault and battery, the Plaintiff has also sustained lost wages.

TWENTY-EIGHT: The Officer Defendants herein caused the aforementioned charges to be filed with full knowledge that said charges were false and with full knowledge of Plaintiff's innocence.

TWENTY-NINE: As a result of the foregoing, the Plaintiff was severely and permanently damaged, suffered mental anguish, as well as other psychological injuries, shame, humiliation, indignity, and damage to reputation and credit.

THIRTY: The actions and conduct of these New York City Police Officers though unlawful were taken in the course of their duties, functions and roles as police officers and were incidental to the otherwise lawful performance of their duties and functions as New York City police officers and as agents and employees of the City of New York.

THIRTY-ONE: The actions and conduct of the New York City police officers herein were as a direct result of the long-standing and on-going actions, conduct, policies, practices and customs of the Defendant City of New York. Such actions, conduct, policies,

practices and customs have resulted in a culture and attitude as well as philosophy by both New York City police officers and the City of New York that the ends justifies the means. The existence of said customs and practices has been well documented through numerous civil rights actions filed against the City of New York.

THIRTY-TWO: The policy and practice of the Defendant City of New York and the New York City Police Department includes arresting innocent persons in order to meet stated “productivity quotas” as stated by Deputy Commissioner Paul J. Browne on or about January 20, 2006 through several media outlets. Said policy encourages New York City police officers to seek out and target certain individuals for arrests where no probable cause for arrest exists in order to generate arrest statistics. As such, police officers wrongfully and unlawfully deprive individuals of their civil rights by subjecting said individuals to unlawful and unjustified detentions.

THIRTY-THREE: Continued wrongful and unlawful behavior by members of the New York City Police Department including but not limited to illegal stops and illegal searches and seizure without probable cause are well known to the City of New York and routinely ignored and tolerated by the City of New York despite censure and notice from such agencies as the Civilian Complaint Review Board. As a result, it has become the custom, policy and practice of the New York City Police Department under color of the City of New York, to engage in these illegal practices.

THIRTY-FOUR: These policies and practices disproportionately impact racial minorities, immigrants, and other persons of color whom because of their race and/or color are singled out and profiled for illegal stops, detentions and arrests.

THIRTY-FIVE: The actions, conduct, policies, practices and customs described

herein violated the Plaintiff's rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. § 1983.

THIRTY-SIX: These actions, conduct, policies and practices were the proximate cause of the injuries and damages suffered by the Plaintiff. But for the gross negligence, incompetence and/or maliciousness of the Defendants individually or vicariously by and through their agents, servants and/or employees, the Plaintiff, **MELVIN VELEZ**, would not have endured this event.

THIRTY-SEVEN: As a direct and proximate result of his unlawful detention, search, arrest and assault and battery, Plaintiff has been irreparably harmed and damaged. Specifically, Plaintiff has suffered injuries and damages including but not limited to loss of physical liberty and freedom, pain and suffering, intentional and/or negligent infliction of emotional distress, harm, shame, humiliation, fear, anxiety, indignity, damage to reputation and credit as well as psychological pain and trauma, mental anguish and serious physical injury.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
"42 U.S.C. § 1983"

THIRTY-EIGHT: That the Plaintiff repeats and re-alleges the allegations contained in paragraphs "**FIRST**" through "**THIRTY-SEVEN**" of the complaint with the same force and effect as if fully set forth herein.

THIRTY-NINE: That the aforesaid actions of the Defendants individually or vicariously by and through their agents, servants and/or employees by subjecting the Plaintiff to an unlawful arrest, unlawful detention, unlawful search and seizure of their person, unlawful

imprisonment, and wrongful prosecution deprived the Plaintiff of rights, privileges, and immunities guaranteed to every citizen of the United States in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

FORTY: That the Defendants individually or vicariously by and through their agents, servants and/or employees subjected Plaintiff to racially and/or national origin discriminatory treatment in violation of the Plaintiff's rights as guaranteed under the Fourteenth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. § 1983.

FORTY-ONE: The Defendants individually or vicariously by and through their agents, servants and/or employees acted in their individual and official capacities and within the scope of their respective employments as members of the New York City Police Department and acted under pretense and color of state law. That said acts were beyond the scope of their jurisdiction, without authority of law, and an abuse of their powers. Further, the Defendants individually or vicariously by and through their agents, servants and/or employees conspired with one another and acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments of the United States Constitution.

FORTY-TWO: As a direct and proximate result of the actions of the Defendants individually or vicariously by and through their agents, servants and/or employees detailed above, the Plaintiff suffered the damages alleged herein.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS
“False Arrest and False Imprisonment”

FORTY-THREE: That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “**FIRST**” through “**FORTY-TWO**” of the complaint with the same force and effect as if fully set forth herein.

FORTY-FOUR: By reason of the foregoing, the Plaintiff, **MELVIN VELEZ**, was wrongfully and illegally arrested, detained and imprisoned without privilege or probable cause to believe that a crime had been committed.

FORTY-FIVE: That the aforesaid actions of the Defendants individually or vicariously by and through their agents, servants and/or employees in subjecting the Plaintiff to arrest, detention and imprisonment was wrongful, unjustifiable, carried out without a valid warrant, without Plaintiff’s consent, without probable cause or reasonable suspicion, and in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

FORTY-SIX: That throughout the relevant time periods, Plaintiff was unlawfully, wrongfully, and unjustifiably detained and deprived of his liberty and was conscious of said confinement, did not consent to said confinement, and said confinement was not otherwise privileged.

FORTY-SEVEN: That all of the acts giving rise to this cause of action occurred without any fault or provocation on the part of the Plaintiff.

FORTY-EIGHT: That the Defendants individually or vicariously by and through their agents, servants and/or employees acted knowingly, willfully, unreasonably, and were grossly reckless in their flagrant disregard for the Plaintiff’s rights, privileges, welfare and well-

being.

FORTY-NINE: That the Defendants individually or vicariously by and through their agents, servants and/or employees acted in their individual and official capacities and within the scope of their respective employments as members of the New York City Police Department and acted under pretense and color of state law. That said acts were beyond the scope of their jurisdiction, without authority of law, and an abuse of their powers. Further, the Defendants individually or vicariously by and through their agents, servants and/or employees acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments of the United States Constitution.

FIFTY: That the Defendants, their officers, agents, servants, and employees were responsible for the false arrest and unlawful imprisonment of the Plaintiff. That the Defendant City of New York is responsible for the actions and conduct of the Officer Defendants, as employees and agents of the City of New York, pursuant to the doctrine of respondeat superior.

FIFTY-ONE: As a direct and proximate result of the misconduct and abuse of authority detailed above, the Plaintiff suffered the damages alleged herein.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS
“Assault and Battery”

FIFTY-TWO: That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “**FIRST**” through “**FIFTY-ONE**” of the complaint with the same force and effect as if fully set forth herein.

FIFTY-THREE: That the Defendants, acting within the scope of their employment, willfully, intentionally, and maliciously assaulted and battered Plaintiff, **MELVIN VELEZ**, in that they had the real or apparent ability to cause harmful and offensive bodily contact to the Plaintiff.

FIFTY-FOUR: That the Defendants did in fact intentionally and forcibly subject the Plaintiff to imminent bodily harm and/or offensive bodily contact. That the Defendants, by physical menace, also caused the Plaintiff to fear imminent and violent contact, thereby causing apprehension on the part of the Plaintiff of such contact by the Defendants toward the Plaintiff.

FIFTY-FIVE: That said assault and battery of the Plaintiff was unnecessary, unwarranted, unnecessarily intrusive and unreasonable in carrying out and/or performing the duties of the Officer Defendants as members of the New York City Police Department.

FIFTY-SIX: That the Defendants individually or vicariously by and through their agents, servants and/or employees intended to deprive the Plaintiff, **MELVIN VELEZ**, of his constitutional rights under 42 U.S.C. §§ 1983 and 1985.

FIFTY-SEVEN: That the Defendants, their officers, agents, servants, and employees were responsible for the assault and battery of the Plaintiff. That the Defendant City of New York is responsible for the actions and conduct of the Officer Defendants, as employees and agents of the City of New York, pursuant to the doctrine of respondeat superior.

FIFTY-EIGHT: As a direct and proximate result of the misconduct and abuse of authority detailed above, the Plaintiff suffered the damages alleged herein.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
“Negligence”

FIFTY-NINE: That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “**FIRST**” through “**FIFTY-EIGHT**” of the complaint with the same force and effect as if fully set forth herein.

SIXTY: That the aforesaid actions of the Defendants individually or vicariously by and through their agents, servants and/or employees constitute negligence with respect to the Plaintiff in that the individual defendants owed a duty of care to the Plaintiff.

SIXTY-ONE: That the Defendants individually or vicariously by and through their agents, servants and/or employees breached that duty of care by causing Plaintiff to be subjected to an unlawful arrest, detention, search and seizure, imprisonment and prosecution.

SIXTY-TWO: Said injury occurred to the Plaintiff without any fault or provocation on the part of Plaintiff.

SIXTY-THREE: That the Defendants, their officers, agents, servants, and/or employees were responsible for the unlawful arrest, detention, search and seizure, imprisonment, and assault and battery of the Plaintiff.

SIXTY-FOUR: That the Defendants individually or vicariously by and through their agents, servants and/or employees intended to deprive the Plaintiff, **MELVIN VELEZ**, of his constitutional rights under 42 U.S.C. §§ 1983 and 1985.

SIXTY-FIVE: That the Defendants, their officers, agents, servants, and employees were responsible for the negligence towards the Plaintiff. That the Defendant City of New York is responsible for the actions and conduct of the Officer Defendants, as employees

and agents of the City of New York, pursuant to the doctrine of respondeat superior.

SIXTY-SIX: That as a direct and proximate result of the unlawful conduct of the Defendants individually or vicariously by and through their agents, servants and/or employees described herein, the Plaintiff suffered damages as alleged herein.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
“Emotional Distress”

SIXTY-SEVEN: That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “**FIRST**” through “**SIXTY-SIX**” the complaint with the same force and effect as if fully set forth herein.

SIXTY-EIGHT: That the aforesaid actions of the Defendants individually or vicariously by and through their agents, servants and/or employees constitute intentional and/or negligent infliction of emotional distress on the Plaintiff and as a result of the conduct alleged herein, Plaintiff sustained serious emotional injuries.

SIXTY-NINE: That the Defendants individually or vicariously by and through their agents, servants and/or employees intended to deprive the Plaintiff, **MELVIN VELEZ**, of his constitutional rights under 42 U.S.C. §§ 1983 and 1985.

SEVENTY: That the Defendants, their officers, agents, servants, and employees were responsible for the unlawful stop and detention, search and seizure, assault and battery of the Plaintiff which resulted in the extreme emotional distress to the Plaintiff. That the Defendant City of New York is responsible for the actions and conduct of the Officer Defendants, as employees and agents of the City of New York, pursuant to the doctrine of respondeat superior.

SEVENTY-ONE: That as the proximate result of the aforesaid acts and omissions by the Defendants individually or vicariously by and through their agents, servants and/or employees the Plaintiff has sustained the damages alleged herein including but not limited to severe and extreme emotional distress.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK
“Negligent Hiring and Retention of
Employment Services”

SEVENTY-TWO: That the Plaintiffs repeat and re-allege the allegations contained in paragraphs “**FIRST**” through “**SEVENTY-ONE**” of the complaint with the same force and effect as if fully set forth herein.

SEVENTY-THREE: That as the employer of the Defendant Officers and the Defendant City of New York owed a duty of care to the Plaintiff to be free of violations of his statutory and constitutional rights at the hands of one of it’s officers, employees, agents, or servants.

SEVENTY-FOUR: That the Defendant City of New York owed a duty of care to the Plaintiff because a reasonable, prudent and careful person should have been able to anticipate that the injury that occurred to the Plaintiff herein or to others in a similar situation would be the likely result of the conduct described herein.

SEVENTY-FIVE: That upon information and belief, the Officer Defendants were unfit and incompetent for their positions.

SEVENTY-SIX: That the actions, conduct, policies, practices and customs of the Defendant City of New York were negligent and otherwise violated Plaintiff’s rights under the

Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. § 1983.

SEVENTY-SEVEN: That upon information and belief, the Defendant City's negligence in screening, hiring, training, disciplining and retaining the Officer Defendants as well as the employees of the Kings County District Attorney's Office handling the cases giving rise to this action was the proximate cause of the injuries to the Plaintiff.

SEVENTY-EIGHT: That upon information and belief, as a direct result of the Defendant City's negligent hiring and retention of the Officer Defendants as well as the employees of the prosecuting authority handling the criminal cases giving rise to this action, the Plaintiff herein sustained serious, permanent, significant, and lasting physical and mental injury as well as loss of liberty.

WHEREFORE, Plaintiffs respectfully request judgment against the Defendants as follows:

1. An order awarding compensatory and other damages against the individual defendants to Plaintiff, **MELVIN VELEZ**, in an amount to be determined at trial;
2. An order awarding punitive damages against the individual defendants to Plaintiff, **MELVIN VELEZ**, in an amount to be determined at trial;
3. An award of declaratory and injunctive relief as to this Court may seem just and proper;

4. An Award of reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988 and 42 U.S.C. § 1997 (e)(d) and

5. Such other and further relief as this Court may deem just and proper.

Dated: July 10, 2009
Brooklyn, New York

//DVE//
Law Offices of Danielle V. Eaddy, LLC
DANIELLE V. EADDY, ESQ. [DE-1592]
26 Court Street, Suite 1400
Brooklyn, NY 11242
(718) 246-2500